

5.

| CASE #      | CASE NAME                                                                 | HEARING NAME                         |
|-------------|---------------------------------------------------------------------------|--------------------------------------|
| CVRI2502894 | RICK'S PATIO, INC. VS<br>MARINE AIR LAND<br>INTERNATIONAL<br>SERVICES LLC | DEMURRER ON 2ND AMENDED<br>COMPLAINT |

**Tentative Ruling:**

SUSTAIN the demurrer to the first cause of action for negligence with 30 days leave to amend. Plaintiff has alleged sufficient facts to state that Defendant owes Plaintiff a legal duty of care, but Plaintiff has insufficiently pled damages. Plaintiff only claims economic damages for its negligence cause of action. (SAC, Para. 24; Prayer, Nos. 1-3.) Plaintiff's Opposition to the Demurrer does not address Defendant's argument that Plaintiff is only seeking economic damages; hence, Plaintiff has failed to state sufficient facts to give rise to a cause of action for negligence arising from Defendant's alleged breach of contract.

OVERRULE the demurrer to the second and third causes of action.

**Breach of Fiduciary Duty**

By alleging that Defendant was Plaintiff's customs broker (Second Amended Complaint (SAC), Para.9.), Plaintiff has alleged sufficient facts to support that a fiduciary relationship existed between the parties and that Defendant owed a fiduciary duty to Plaintiff. Whether the fiduciary duty was breached is a question of fact that cannot be decided upon a demurrer.

**Breach of Contract**

Plaintiff sufficiently alleges that Defendant agreed to ensure that correct tariff applications would be filed, and that Defendant breached its agreement by filing "incorrect paperwork" that led to the imposition of unnecessary tariffs. (SAC, Paras. 10-12.) Plaintiff has alleged sufficient facts to state a cause of action for breach of contract against Defendant.

6.

| CASE #      | CASE NAME                                                                 | HEARING NAME                              |
|-------------|---------------------------------------------------------------------------|-------------------------------------------|
| CVRI2502894 | RICK'S PATIO, INC. VS<br>MARINE AIR LAND<br>INTERNATIONAL<br>SERVICES LLC | MOTION TO STRIKE 2ND<br>AMENDED COMPLAINT |

**Tentative Ruling:**

GRANT the motion to strike Plaintiff's request for attorney fees in the SAC, Prayer No. 2. There is no fee authorized by contract, statute, or law that would entitle Plaintiff to attorney fees. Plaintiff is entitled, however, to seek costs.